

*PART I.

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DEFINITION, CLASSIFICATION, AND CREATION OF TRUSTS.

CHAPTER I.

DEFINITION OF A TRUST.

Definition of a trust. — As the doctrines of trusts are equally applicable to *real* and *personal* estate, and the principles that govern the one will be found *mutatis mutandis*, to govern the other, we cannot better describe the nature of a trust generally, than by adopting Lord Cook's definition of a *use*, the term by which, before the Statute of Uses, a trust (1) of lands was designated (*a*). A trust, in the words applied to the use, may be said to be "*A confidence reposed in some other,*

(*a*) *Burgess v. Wheate*, 1 Ed. 248, *Spillet*, 2 Atk. 150, *per* Lord Hard-
per Lord Keeper Henley; *Lloyd v. wicke*.

(1) That a trust was anciently known as a *use*, appears from the *Merchant of Venice*. Thus, when Shylock had forfeited one half of his goods to the State to be commuted for a fine, and the other half of his goods to Antonio, the latter offered that, if the Court, as representing the State, would forego the forfeiture of the one half, he (Antonio) would be content himself to hold the other half in *use*, that is, in *trust* for Shylock for life, with remainder, after Shylock's death, for Jessica's husband: —

"So please my lord the duke, and all the court,
To quit the fine for one half of his goods;
I am content so he will let me have
The other half *in use*, — to render it,
Upon his death, unto the gentleman
That lately stole his daughter."

Merchant of Venice, Act IV, Scene I.

This interpretation clears Antonio's character from the charge of selfishness to which it would be exposed if he were to keep the half for his own use during his life.

See Heard's "*Shakespeare as a Lawyer*," pp. 93, 94; 2 Wash. Real Prop. chap. II.; *Wallace v. Wainwright*, 87 Pa. St. 263; *Croxall v. Shererd*, 5 Wall. 268; *Reid v. Gordon*, 35 Md. 183; *Underhill on Trusts and Trustees*, 1; 1 Story Eq. Jur. §§ 56, 58; *Commissioners v. Walker*, 6 How. 143; 38 Am. Dec. 433; *Chaffees v. Risk*, 12 Harris, 432.